



POLICE CRIMINAL COMPLAINT

Docket Number <i>CR-111-23</i>	Date Filed 08/21/2023	OTN/Live Scan Number R5309544	Complaint Number R4669KJ63D	Incident Number PA 2022-360590
Defendant Name	First KELLI	Middle D	Last DESANTIS	

AFFIDAVIT of PROBABLE CAUSE

I, the affiant Tpr. Yuri KISHENKO of the Pennsylvania State Police, Blooming Grove patrol unit, am a duly sworn State Trooper of the Commonwealth of Pennsylvania.

On 03/23/22 at approximately 1655 hours, I was in full uniform in marked patrol unit R4-12. I was dispatched to an MVC on Milford Rd, Delaware Twp, Pike County. Upon arrival, I observed the suspect's vehicle which was a black in color 2021 Kia Sorento bearing PA registration LJY2195 was crashed into a tree off of the roadway and the suspect was being attended to inside the ambulance by Delaware Township EMS personnel.

On 03/23/22 at approximately 1706 hours, I interviewed DESANTIS at the scene. DESANTIS related she was traveling northbound on Milford Rd when a squirrel ran in front of her car and she swerved right to avoid it, which caused her vehicle to travel off of the roadway and strike a tree with her front bumper. During the interview, I detected the odor of an alcoholic beverage emanating from her person. I observed slurred speech, and bloodshot eyes. Field sobriety tests were not administered due to the smell of an alcoholic beverage and safety concerns due to being in an active crash scene.

DESANTIS was then transported to PSP PSP Blooming Grove barracks in order to provide a breath sample to determine her blood alcohol content. While at PSP Blooming Grove, DESANTIS was advised of her O'CONNELL consent warnings. DESANTIS agreed to submit to a breath test to determine her blood alcohol content (BAC). The test was administered by Tpr. Jessica QUINN using the INTOXILYZER Model 9000. DESANTI's BAC was determined to be 0.338%.

Your Affiant believes the above mentioned to be true and correct and respectfully requests a summons be issued as per the attached criminal complaint.

I, TPR. YURI KISHENKO _____ BEING DULY SWORN ACCORDING TO THE LAW, DEPOSE AND SAY THAT THE FACTS SET FORTH IN THE FOREGOING AFFIDAVIT ARE TRUE AND CORRECT TO THE BEST OF MY KNOWLEDGE, INFORMATION AND BELIEF.

I CERTIFY THAT THIS FILING COMPLIES WITH THE PROVISIONS OF THE CASE RECORDS PUBLIC ACCESS POLICY OF THE UNIFIED JUDICIAL SYSTEM OF PENNSYLVANIA THAT REQUIRE FILING CONFIDENTIAL INFORMATION AND DOCUMENTS DIFFERENTLY THAN NON-CONFIDENTIAL INFORMATION AND DOCUMENTS.

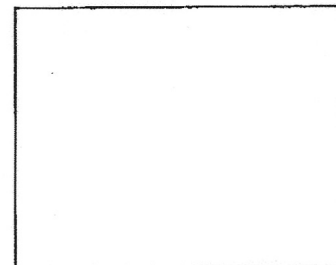
TPR. Yuri Kishenko

(Signature of Affiant)

Sworn to me and subscribed before me this _____ day of _____

_____, Date _____, Magisterial District Judge

My commission expires first Monday of January,



**COMMONWEALTH OF PENNSYLVANIA
COUNTY OF: PIKE**



**POLICE CRIMINAL COMPLAINT
COMMONWEALTH OF PENNSYLVANIA
VS.**

Magisterial District Number: 60-3-04

MOJ Hon. PAUL D. MENDITTO

Address: 213 SILVER LAKE RD
DINGMANS FERRY, PA 18328

Telephone: (570) 828-2880

DEFENDANT: (NAME and ADDRESS)

KELLI

D

DESANTIS

First Name

Middle Name

Last Name

Gen

(917) 561-4511

NCIC Extradition Code Type

NCIC Extradition CodeType C - MISDEMEANOR SURROUNDING STATES

Distance

DEFENDANT IDENTIFICATION INFORMATION

Docket Number CR-11-23 Date Filed 08/21/2023 OTN/Live Scan Number R5309544 Complaint Number R4669KJ63D Incident Number PA 2022-360590 Request Lab Services NO

Gender F Date of Birth 08/11/1977 POB MD - USA Add'l DOB Co-Defendant? NO

Defendant Also Known As Defendant's First Name Middle Name Last Name Suffix

Race BLACK - B Ethnicity NOT OF HISPANIC ORIGIN - N

Hair Color BLACK - BLK Eye Color BROWN - BRO

DNA NO DNA Location Weight 135 LBS

FBI Number J4VXTFJWF MNU Number Height 5' 09"

Defendant Fingerprinted NO Fingerprint Classification

DEFENDANT VEHICLE INFORMATION

Plate # LJY2195	State PA	HazMat	Registration Sticker (MM/YY) 2024	Commercial Vehicle? NO	School Veh. NO	Oth. NCIC Veh. Code	Reg. same as Def. NO
VIN 5XYRLDLC4MG038388	Year 2021	Make KIA	Model SORENTO	Style STATION WAGON - SUV	Color BLACK		

Office of the Attorney of the Commonwealth ☐ Approved ☐ Disapproved because:

(The attorney for the Commonwealth may require that the complaint, arrest warrant affidavit, or both be approved by the attorney for the Commonwealth prior to filing. Pa.R.Crim.P.507.)

(Name of Attorney for Commonwealth - Please Print or Type)

(Signature of Attorney for Commonwealth)

(Date)

I, TPR YURI KISHENKO
(Name of Affiant - Please Print or Type)

708370/12463
(PSP/IMPOETC - Assigned Affiant ID Number & Badge #)

of PENNSYLVANIA STATE POLICE, TROOP R, BLOOMING GROVE
(Identify Department or Agency Represented and Political Subdivision)

PAPSP5800
(Police Agency ORI Number)

do hereby state: (check appropriate box)

1. ☒ I accuse the above named defendant who lives at the address set forth above

I accuse the defendant whose name is unknown to me but who is described as

I accuse the defendant whose name and popular designation or nickname is unknown to me and whom I have therefore designated as John Doe or Jane Doe.

with violating the penal laws of the Commonwealth of Pennsylvania at: 202
(Subdivision Code)

MILFORD RD MEASURING 174 FEET SOUTH OF SILVER LAKE RD, DELAWARE TWP
(Place-Political Subdivision)

in PIKE

County 51 on or about
(County Code)

03/23/2022 AT APPROX. 16:55 HRS
(Offense Date)

AUG 24 2023



POLICE CRIMINAL COMPLAINT

Docket Number CR-111-23	Date Filed 08/21/2023	OTN/Live Scan Number R5309544	Complaint Number R4669KJ63D	Incident Number PA 2022-360590
Defendant Name	First KELLI	Middle D	Last DESANTIS	

The acts committed by the accused are described below with each Act of Assembly or statute allegedly violated, if appropriate. When there is more than one offense, each offense should be numbered chronologically

(Set forth a brief summary of the facts sufficient to advise the defendant of the nature of the offense(s) charged. A citation to the statute(s) allegedly violated, without more, is not sufficient. In a summary case, you must cite the specific section(s) and subsection(s) of the statute(s) or ordinance(s) allegedly violated.

Inchoate Offense	☐ Attempt 18 901 A	☐ Solicitation 18 902 A	☐ Conspiracy 18 903	Number of Victims Age 60 or Older 0				
Lead? YES	Offense # 1	Section 3802	Subsection C	PA Statute (Title) 75	Count 1	Grade M	NCIC Offense Code 5404	UCR/NIBRS VC38
PennDOT DATA (if applicable)		Accident Number PA 2022-360590		Interstate Indicator NO	Safety Zone NO		Work Zone NO	

Statute Description (include the name of statute or ordinance):
DUI/BAC .16% AND GREATER

Acts of the accused associated with this Offense;

IN THAT, on or about said date THE DEFENDANT, being an adult 21 years of age or older, did drive, operate or was in actual physical control of the movement of a vehicle namely, a black in color 2021 Kia Sorento bearing PA registration LJY2195 after imbibing a sufficient amount of alcohol such that the alcohol concentration of the individual's BREATH was .338% which is .16% or higher within two hours after the individual had driven, operated or been in actual physical control of the movement of the vehicle, in violation of Section 3802 (c) of the PA Vehicle Code.

Inchoate Offense	☐ Attempt 18 901 A	☐ Solicitation 18 902 A	☐ Conspiracy 18 903	Number of Victims Age 60 or Older				
Lead? NO	Offense # 2	Section 3309	Subsection 1	PA Statute (Title) 75	Count 1	Grade S	NCIC Offense Code 5499	UCR/NIBRS VC33
PennDOT DATA (if applicable)		Accident Number PA 2022-360590		Interstate Indicator NO	Safety Zone NO		Work Zone NO	

Statute Description (include the name of statute or ordinance):
DISREGARD TRAFFIC LANE (SINGLE)

Acts of the accused associated with this Offense:

FAILED TO DRIVE WITHIN A SINGLE LANE AND OR MOVEMENT FROM LANE WAS NOT MADE SAFELY



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Inchoate Offense	☐ Attempt 18 901 A	☐ Solicitation 18 902 A	☐ Conspiracy 18 903	Number of Victims Age 60 or Older				
Lead? NO	Offense # 3	Section 3714	Subsection A	PA Statute (Title) 75	Count 1	Grade S	NCIC Offense Code 5499	UCR/NIBRS VC37
PennDOT DATA (if applicable)		Accident Number PA 2022-360590		Interstate Indicator NO	Safety Zone NO		Work Zone NO	
Statute Description (include the name of statute or ordinance): CARELESS DRIVING								

Acts of the accused associated with this Offense:

IN THAT, on or about said date, THE DEFENDANT did drive a vehicle in careless disregard for the safety of persons or property at Milford Rd right before the intersection with Silver Lake Rd by driving under the influence of alcohol, in violation of Section 2714(a) of the PA Vehicle Code



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Defendant Name	Defendant's First Name KELLI	Middle Name D	Last Name DESANTIS	

2. I ask that a warrant of arrest or a summons be issued and that the defendant be required to answer the charges I have made.
3. I verify that the facts set forth in this complaint are true and correct to the best of my knowledge or information and belief. This verification is made subject to the penalties of Section 4904 of the Crimes Code (18 Pa.C.S. §4904) relating to unsworn falsification to authorities.
4. This complaint consists of the preceding page(s) numbered 1 through **4**.
5. I certify that this filing complies with the provisions of the *Case Records Public Access Policy of the Unified Judicial System of Pennsylvania* that require filing confidential information and documents differently than non-confidential information and documents.

The acts committed by the accused, as listed and hereafter, were against the peace and dignity of the Commonwealth of Pennsylvania and were contrary to the Act(s) of the Assembly, or in violation of the statute cited.

(Before a warrant of arrest can be issued, an affidavit of probable cause must be completed, sworn to before the issuing authority, and attached.)

8/21/23
(Date)

TPR. *[Signature]*
(Signature of Affiant)

AND NOW, on this date, August 28, 2023 I certify that the complaint has been properly completed and verified. An affidavit of probable cause must be completed before a warrant can be issued.

60-3-04
(Magisterial District Court Number)

[Signature]
(Issuing Authority)

